CITY OF OPA-LOCKA

"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
JULY 13, 2011
7:00 P.M.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, Florida 33054

1. CALL TO ORDER:

Mayor Myra L. Taylor called the meeting to order at 7:00 p.m. on Wednesday, July 13, 2011 in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Rose Tydus, Vice Mayor Dorothy Johnson, Commissioner Timothy Holmes, Commissioner Gail Miller and Mayor Myra L. Taylor. Also in attendance were: Interim City Manager Bryan Finnie, City Attorney Joseph S. Geller, and City Clerk Deborah S. Irby.

3. INVOCATION:

The Invocation was delivered by Commissioner Rose Tydus.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST:

Manager Finnie deferred agenda items 18A3, 18A4 and 18B1. Commissioner Holmes pulled agenda item 19-1 from the Consent Agenda (this item would be discussed separately under agenda item 15 – Action Items).

Commissioner Holmes asked for an explanation as to why the City Manager deferred the two ordinances since it was only for first reading and would still have to come back before the Commission.

Manager Finnie explained that he was not privy to discussion nor was he briefed on those items. Until he has the opportunity to review those items, he said he was not comfortable in recommending that these items move forward at this time.

It was moved by Vice Mayor Johnson, seconded by Commissioner Miller to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	Yes
Mayor Taylor	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

8. APPROVAL OF MINUTES:

Special Commission Meeting – 06/17/2011
Regular Commission Meeting – 06/22/2011

It was moved by Commissioner Holmes, seconded by Vice Mayor Johnson to approve the minutes of the Special Commission Meeting of June 17, 2011 and the Regular Commission Meeting of June 22, 2011.

Vice Mayor Johnson made a correction to page 13, 5th paragraph of the Regular Commission Meeting minutes of June 22, 2011 to replace the word "her" with "Commission".

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Mayor Taylor	Yes

9. 17th CONGRESSIONAL DISTRICT OF FLORIDA REPORT:

10. STATE SENATORS REPORT:

11. STATE REPRESENTATIVES REPORT:

12. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Larry Gardner of Miami-Dade County Commissioner Barbara Jordan's Office (District 1) came forward to address any concerns.

Vice Mayor Johnson requested that Mr. Gardner remind Commissioner Jordan of the residential construction graduation on Friday, July 15, 2011.

13. MIAMI-DADE COUNTY FIRE RESCUE DEPARTMENT REPORT:

14. PUBLIC PRESENTATION:

1. Lawrence Wright, Wright & Partners, LLC of 3827 NW 125 Street, North Miami, Florida came forward and provided a brief update on the Sherbondy Community Village project. He mentioned that the building is 1.5 months away from completion and that he met with Pastor Bookings of United Methodist Church for the possibility of a partnership for additional parking during special events at the facility.

In terms of the additional parking at the church, Vice Mayor Johnson suggested that this matter go through the City Attorney for legal sufficiency. Additionally, staff must bring that recommendation to the Commission so they can decide if they want to move forth with that option. Staff must also look at the liability part of it to make sure the city is covered should anything occur on that property.

She recalled a conversation with Mr. Wright in which the pump station was mentioned. She asked for clarification from the City Manager in terms of that pump station.

Manager Finnie stated that when he left the city over 19 months ago that pump station was fully funded and ready to go, but when he arrived back to the city three weeks ago, he found out that nothing had happened. In working with staff over the last two weeks, they have developed a plan to move forward with the pump station so that it can be completed within 5 to 6 months.

Of concern to Vice Mayor Johnson was that the building would be complete by August 15th, however, the pump station would not be complete until 5 to 6 months later which is totally unacceptable.

During the last workshop with Mr. Wright, staff was directed to execute an agreement with Wright & Partners. She asked Mr. Wright whether there were any outstanding agreements to finish this project?

Mr. Wright informed the Commission that the environmental clearance agreement was still pending.

Vice Mayor Johnson asked Mr. Wright if he was working with staff for a conclusion on that agreement?

Mr. Wright advised that he was working with the City Attorney and through the previous City Manager, he sent a revised contract, however, he never received any response back.

Attorney Geller indicated that a revised agreement was sent to Mr. Wright as per the instructions from the Commission, however, he hasn't received the signed agreement back nor had he received any comments.

Vice Mayor Johnson suggested that both the City Attorney and Mr. Wright work together within a reasonable time to bring this matter to a conclusion.

Because Mr. Finnie worked at Miami-Dade County, she said he should have contacts to be able to expedite the Sherbondy Park project.

Of concern to Commissioner Holmes was whether or not Mr. Wright and the City Attorney had reached an agreement in terms of the additional contract.

Mr. Wright indicated that they had not reached an agreement and he sent the information to the previous City Manager, and have not heard from the city on the contract.

Commissioner Holmes said he wasn't sure why it was taking so long to finalize the agreement with Mr. Wright. He mentioned an email sent from the City Attorney informing the Commission that he would be in the office at City Hall for several hours. The problem with the City Attorney is that he must come into the office at City Hall on a daily basis to be able to deal with the operations of the city. If the City Attorney cannot perform his duties, then the Commission will have to appoint an attorney who can come to City Hall and deal with the day to day operations of the city.

He continued by saying that whoever was responsible for the drawing of the building and didn't include parking should be dealt with and this applies to the City Attorney as well because he is responsible for reviewing everything for legal sufficiency. He suggested that the city utilize the area where the old Fire Station is located by knocking down those buildings and using a portion of the baseball field for parking.

Mr. Wright said he is still awaiting a response that the previous City Manager was suppose to give to be able to operate as agreed to in the workshop.

Commissioner Holmes suggested that Mr. Wright follow through with the current City Manager.

Mr. Wright requested the letter that the Commission gave in the workshop so that he can pursue Sherbondy Park & Village as agreed.

Manager Finnie requested that a meeting be held so that he can be informed as to the letter that is being referenced because he's not privy to the agreement and he needs to know what that is.

Mayor Taylor suggested that the City Manager, City Attorney and Mr. Wright meet to iron this matter out.

As it related to the parking, Vice Mayor Johnson said she is skeptical about going on other property because of the potential liability. She suggested that the City Manager have the city's engineer and staff look at other alternatives for parking on city owned property.

Manager Finnie indicated that on July 12, 2011 he spent two hours in a meeting with Mr. Wright and staff and he is shock to hear about the parking issue now for the first time. He scheduled a briefing on the Sherbondy Park project on the following day (July 14, 2011) at 10:00 a.m. so that staff could update him so that he can come back to the Commission on July 27, 2011 with a detailed memorandum.

Mayor Taylor thanked Mr. Wright for his presentation and Pastor Bookings for volunteering to assist with the parking issue.

Commissioner Tydus stated that the last workshop held mainly dealt with the ER compliance and the Miami-Dade County funding. The pending contract presented at that particular workshop of which the Commission approved was primarily for Mr. Wright's company to deal with the ER compliance. The documentation provided to the Commission made reference to some recommendations. She asked, whatever is to be facilitated by September, are those Mr. Wright's recommendations under this particular contract?

It was Mr. Wright understanding that the current City Manager has full knowledge of the situation and is aware of what needs to be done. He said he didn't want to incur additional costs to the city if the City Manager has the where for alls to get it done. In his conversation with the City Manager, it was stated that the city would get it done by September.

Manager Finnie explained that the issue with the environmental review is a very serious issue that needs to be approved by HUD. After meeting with the director of OCED and having several conversations, he was informed that the process for approval can take up to 3 to 4 months; however, OCED has agreed to restructure its funding to the city in order to continue with the commitment of 2.1 Million Dollars for future projects. He informed the Commission that he would provide a detailed memorandum on July 27, 2011 in terms of how this issue would be resolved and it should be resolved by September.

Of concern to Commissioner Tydus was the fact that the resolution presented by Manager Finnie appears to be the work of the city's administration and not Mr. Wright of which this pending contract includes.

Manager Finnie reiterated that he met with the county and they had a candid conversation relating to some of the things mentioned in previous meetings that Mr. Wright had and he made it very clear to them that he was uncomfortable with the direction this was heading. Based on the discussions from those meetings, he began to develop a strategy to develop

the city's issues with the county. He piggybacked on a previous meeting by following up in an effort to negotiate a resolution so it could be a win/win scenario for the city.

Commissioner Tydus suggested that a workshop be held to further discuss the Sherbondy Park project.

Mayor Taylor thanked Mr. Wright for his presentation and directed him to meet with the City Manager and City Attorney to resolve the issue by July 27, 2011.

2. Alvin Burke, 2829 NW 132 Street, Opa-locka, Florida, appeared before the City Commission to express his concerns about the city requiring employees to take furlough days without pay, but yet they are continuing to have parties. Of further concern was the recent transfer of an employee as Assistant Public Works Director after the city created a job for this individual when he was originally hired. If the city doesn't have a job for this individual, then he suggested that they allow this person to move on.

Vice Mayor Johnson said that she didn't know of any commission that should have judicial responsibility to the hiring of anyone. Although she didn't know whether the statements were true, she said she is aware of what the charter states. For the record, she said she has not created any jobs; the City Manager is the responsible official for the day to day operations of the city.

Because Mr. Burke brought up a good point, Commissioner Holmes said that he too would like to know if the Gospel Fest is costing the city money.

Commissioner Tydus explained that the Gospel Fest is a budgeted item of the Parks & Recreation Department that was going to take place regardless. Therefore, this is an event that was planned by the Parks & Recreation, more specifically, it came out of the seniors department and she was asked to host the event of which she has been a part of the planning process since. She said this was not something that Commissioner Tydus created, she is hosting the event.

Due to the city's current financial situation, Commissioner Holmes said this event came at the wrong time when they are reducing employee salaries and requiring furlough days. Although it is coming out of the Parks & Recreation budget, it is still money from the city. The City Commission must take into consideration what is in the best interest of this city and community.

14a. CITIZENS' FORUM:

1. David Norris of 260 Perviz Avenue, Apt. 18, Opa-locka, Florida, came before the City Commission to thank them for taking care of the trash truck situation at his residence and for the discount card provided to city employees. He said it was sad to hear the comments about money spent for certain things while city employees are required to take furlough days to balance the budget.

He further spoke about a recent union meeting where the members where to vote on either furlough days or lay offs for city employees and as a citizen he can recall hearing the Mayor state that there would be no lay offs.

Manager Finnie stated that as he understood it, the policy of the Commission is to avoid lay offs; however, as the City Manager he has the responsibility to monitor the numbers, revenue and costs.

2. Alvin Burke of 2829 NW 132 Street, Opa-locka, Florida, came forward and stated that his comments relating to the Gospel Fest was not an attack at Commissioner Tydus; however, it is a bad time to be having parties considering the city's financial crisis.

15. ACTION ITEMS (items from consent agenda pull list):

19-1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA NAMING OFFICERS TO THE COMMUNITY REDEVELOPMENT AGENCY AND ADOPTING ROBERT'S RULES OF ORDER (NEWLY REVISED) AS RULES OF PROCEDURE; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Johnson, seconded by Commissioner Holmes to pass the above resolution.

Commissioner Holmes asked for clarification on the above resolution.

Manager Finnie stated that it was his understanding this item is to identify a chair and vice chair of the board member names.

Vice Mayor Johnson added that in order for the corporation to be identified in Tallahassee as an active organization, the Commission is the board of directors and now they must select a Chair and Vice Chair in order for the City Attorney to proceed with the paperwork.

Attorney Geller pointed out that the resolution itself has two blanks to be filled in by whoever the Commission identifies as the Chair and the Vice Chair, other than that, the resolution is ready to be adopted.

Vice Mayor Johnson nominated herself as the Chair of the CRA.

Commissioner Holmes nominated Mayor Taylor as the Vice Chair of the CRA.

Commissioner Miller nominated herself as the Chair and Commissioner Rose Tydus as the Vice Chair of the CRA.

Commissioner Holmes proposed a motion naming Vice Mayor Dorothy Johnson as Chair and Mayor Taylor as Vice Chair of the CRA.

Commissioner Tydus nominated herself as the Chair and Commissioner Miller as the Vice Chair of the CRA.

Because of the various nominations, Mayor Taylor asked for guidance.

Attorney Geller advised that the Commission could vote in the fashion that it deems advisable (i.e. written ballot, roll call, particular motion) except by secret ballot.

It was moved by Commissioner Holmes, seconded by Vice Mayor Johnson naming Vice Mayor Johnson as the Chair and Mayor Taylor as the Vice Chair of the CRA.

Vice Mayor Johnson asked if the City Attorney was following Robert's Rules?

Attorney Geller said he is following Robert Rules unless the Commission deems otherwise. On this matter, the Commission can vote in any fashion they want to. If it is the Commission pleasure to vote on it by voting on a motion that's been made, then they can proceed in that fashion.

Vice Mayor Johnson said she didn't know what other parliamentarian ruling is in the universe except for Robert Rules. According to the Charter of the City of Opa-locka, the city must abide Robert Rules. She asked, when did the city adopt different rules?

Attorney Geller explained that the city has some particular rules of procedures on their own that is in the Charter, other than that, the city operates by Robert Rules.

Vice Mayor Johnson advised that the charter/code does not read "other than that"; it states "the governing of this city is through our policies and procedures, or legislation or Robert Rules". Should there be something different in the city charter/code, then she would like it to be pointed out.

Attorney Geller agreed with Vice Mayor Johnson and said that was exactly correct.

Because Mayor Taylor didn't know where this discussion was leading, she asked Vice Mayor Johnson if she was saying that the Commission was not following Robert Rules or did she want to proceed with calling the question?

Vice Mayor Johnson said that the norm, like in an election, a person can vote for the candidate only one time and what she heard the attorney state is "if it is the wish of the Commission". The wish of the Commission should be Robert Rules.

Clerk Irby asked for clarification on the motion made.

Both Commissioner Holmes and Vice Mayor Johnson advised that the motion was on the two names provided.

Commissioner Tydus asked, does the motion have to be done with the two names?

Attorney Geller advised that the Commission could divide the motion into two.

Mayor Taylor indicated that the only problem was that Section 2 addressed both the Chair and the Vice Chair. She suggested that the motion include both names.

Clerk Irby said she didn't get a motion for the chair.

Commissioner Holmes informed the City Clerk that he made the motion and it was seconded by Vice Mayor Johnson to name Vice Mayor Johnson as the Chair and Mayor Taylor as the Vice Chair of the CRA.

Commissioner Tydus said she didn't see the fairness in this in that personally there are nominations for Chair that she is in favor of and some that she is not, and that goes for the Vice Chair as well. To limit the Commission on a decision that would be based upon two when they might favor one and not the other is not fair. She suggested that the Commission vote individually.

Attorney Geller advised that under Robert Rules there is a motion and it is permissible, subject to the permission of the body, a member can ask that a motion cover two items or divide it. It is permissible but not automatic by the request, it is up to the body.

Mayor Taylor asked if the second had to be withdrawn?

Attorney Geller said a motion was made and it has to be voted upon; they don't have to remove anything. There is just a provision under Robert's Rules for what is called division of the question. If there is more than one item covered, someone can request division and it is up to the body to vote to allow that or to vote on it as originally stated.

Because Commissioner Tydus was requesting a division, Mayor Taylor asked, is a motion needed for that?

Attorney Geller said the Commission would have to take a vote on Commissioner Tydus request.

Mayor Taylor asked, does Commissioner Tydus need a second?

Attorney Geller replied, no.

Mayor Taylor put Commissioner Tydus request to divide the names for Chair and Vice Chair to a vote.

Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	No
Vice Mayor Johnson	No
Mayor Taylor	Yes

Commissioner Tydus request to divide the names passed by a 3-2 vote.

Attorney Geller advised that the Commission is voting on Commissioner Holmes motion; but it is now divided. The first part of his motion is to name the Vice Mayor as the Chair of the CRA.

Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Tydus	No
Commissioner Miller	No
Mayor Taylor	No

The motion failed by a 3-2 vote.

The Commission voted on naming Commissioner Gail E. Miller as Chair of the CRA.

Commissioner Holmes	No
Vice Mayor Johnson	No
Commissioner Tydus	No
Commissioner Miller	Yes
Mayor Taylor	No

The motion failed by a 4-1 vote.

The Commission continued to vote on naming Commissioner Rose Tydus as Chair of the CRA.

Commissioner Holmes	No
Vice Mayor Johnson	No
Commissioner Miller	No
Commissioner Tydus	Yes
Mayor Taylor	No

The motion failed by a 4-1 vote.

Mayor Taylor called for chair privilege and deferred the above resolution to the Regular Commission Meeting of July 27, 2011 without objection from the Commission.

Vice Mayor Johnson expressed her disappointment with the City Attorney's advice as it related to the deferment of the above resolution after action was taken.

Attorney Geller clarified that nothing passed so the item remains pending.

Vice Mayor Johnson said that only one of the opposed individuals could bring this item back.

Attorney Geller said that if something passed he would agree with Vice Mayor Johnson.

Commissioner Holmes informed the City Attorney that it takes the majority of the Commission to pass legislation and one member alone cannot do it because the City of Opa-locka was not a strong mayor or vice mayor form of government.

16. NEW ITEMS:

17. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

18. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

1. AN ORDINANCE OF THE CITY COMMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AMENDING ORDINANCE 10-23, THE GENERAL FUND BUDGET FOR THE FISCAL YEAR COMMENCING OCTOBER 1, 2010 AND ENDING SEPTEMBER 30, 2011, ADJUSTING REVENUES AND EXPENDITURES AS REFLECTED IN EXHIBIT "A"; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

The following amendment to the ordinance was read into the record by Attorney Geller. This amendment would be included in the body of the ordinance as an additional whereas clause: *Whereas: General Fund Revenue includes a transfer from the Water & Sewer Fund in the amount of $275,000.00 to be repaid over a period of three years.*

And further in Section 2 at the end: *Including a transfer from the Water & Sewer Fund in the amount of $275,000.00 to be repaid over a period of three years.*

It was moved by Vice Mayor Johnson, seconded by Commissioner Tydus to pass the ordinance on first reading.

There being no discussion, the motion passed by a 4-1 vote.

Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	No
Mayor Taylor	Yes

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AMENDING ORDINANCE 10-24, THE PROPRIETARY AND SPECIAL REVENUE FUNDS BUDGET FOR THE FISCAL YEAR COMMENCING OCTOBER 1, 2010 AND ENDING SEPTEMBER 30, 2011; ADJUSTING REVENUES AND EXPENDITURES AS REFLECTED IN EXHIBIT "A", REFLECTING CHANGES (INCREASES) IN REVENUE SOURCES AS FOLLOWS: CAPITAL PROJECTS (FUND 320), ONE MILLION SEVEN HUNDRED NINE THOUSAND FOUR HUNDRED AND THIRTY DOLLARS ($1,709,430); SPECIAL LAW ENFORCEMENT (FUND 165), TWENTY FIVE THOUSAND DOLLARS ($25,000); CAPITAL IMPROVEMENT DEBT SERVICE (FUND 230), SIX MILLION NINE HUNDRED THIRTY FIVE THOUSAND DOLLARS ($6,935,000); PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

The following amendment to the ordinance was read into the record by Attorney Geller. This amendment would be included in the body of the ordinance as an additional whereas clause: *Whereas: The Water & Sewer Fund will transfer $275,000.00 to the General Fund to be repaid over a period of three years.*

And further in Section 2 at the end: *Including a transfer to the General Fund in the amount of $275,000.00 to be repaid over a period of three years.*

It was moved by Vice Mayor Johnson, seconded by Commissioner Miller to pass the ordinance on first reading.

There being no discussion, the motion passed by a 4-1 vote.

Commissioner Miller	Yes
Commissioner Holmes	No
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Mayor Taylor	Yes

B. SECOND READING/PUBLIC HEARING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING ORDINANCE 86-8, SECTION 6.11 (B) AND 6.12 (B) OF THE LAND DEVELOPMENT CODE PROVIDING FOR THE ADDITION OF WASTE TRANSFER STATION AS A SPECIAL EXCEPTION USE WITHIN THE I-2 AND I-3 ZONING DISTRICTS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE (first reading held on June 22, 2011). *Sponsored by C.M.*

The above item was deferred per the City Manager.

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA TO AUTHORIZE THE CITY MANAGER TO ENTER INTO AND EXECUTE AN AGREEMENT WITH PETERSON HARLEY-DAVIDSON OF MIAMI, LLC, TO LEASE THREE (3) FLHP ROAD KING MOTORCYCLES, AT AN ANTICIPATED COST OF $475.00 EACH PER MONTH, WITH A TOTAL COST OF $34,200.00, FOR A TWENTY-FOUR MONTH PERIOD, TO BE PAID FROM ACCOUNT NUMBER 22-521649; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE (first reading held on June 22, 2011). *Sponsored by T.H.*

The above ordinance was read by title by Attorney Geller.

Mayor Taylor opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Vice Mayor Johnson, seconded by Commissioner Holmes to pass the above ordinance.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Commissioner Miller	Yes
Mayor Taylor	Yes

C. RESOLUTION/PUBLIC HEARING:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO APPROVE THE FINAL SITE PLAN FOR THE CONSTRUCTION OF A SNAPPER'S FISH AND CHICKEN RESTAURANT AT THE CORNER OF VETERAN'S WAY AND TWENTY-SECOND AVENUE, FOLIO 08-2122-025-0270; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

Mayor Taylor opened the floor for a public hearing.

1. John Riley of 2963 NW 135th Street, Opa-locka, Florida, appeared before the City Commission and stated that he loves to see new businesses coming into the community; however, the street next to this lot floods tremendously. He further asked about the impact fees the city would be receiving.

In terms of the impact fees, Manager Finnie said he didn't have that number available at that time.

There being no further persons to speak on the public hearing, the public hearing was closed.

It was moved by Vice Mayor Johnson, seconded by Commissioner Miller to pass the above resolution.

Vice Mayor Johnson inquired about a traffic study and the notification to area residents and/or businesses.

Howard Brown, Planning & Community Development Director for the City of Opa-locka came forward and said that a traffic study was not required for this type of approval.

Vice Mayor Johnson said she wanted to make sure due diligence was done with this item and that the notification process had taken place.

Manager Finnie explained that this item did go before the Planning Council on May 3, 2011; however, he could not provide an answer in terms of going out to local community groups.

Vice Mayor Johnson stated that everything pertaining to any project must be included in the documentation for the Commission to review. She was of the opinion that staff did not do due diligence with this item.

Manager Finnie deferred the above resolution because it is clear that additional information must be brought back for the Commission to review. Not only does the city have to look at the flooding issue and make sure they touch base with the community, but he also has to inform the Commission as to what the tax ratable is, what is the tax generated for the city, how many jobs will be created, and how it would impact with the police department. He suggested that this item be deferred to allow for staff to provide a more comprehensive package.

Mayor Taylor said she is concerned about the flooding in that area which would be an inconvenience. She suggested that the city do due diligence with this item before it is brought back before the Commission.

Carlos Hernandez of 10031 SW 42 Terrace, Miami, Florida, came forward representing Snappers Fish.

Mayor Taylor informed Mr. Hernandez that the Commission found out that some things had not been done on the city's part and she asked if they could wait one more meeting.

Mr. Hernandez agreed with the deferring of this item until the next meeting.

The seconded and motion on the above resolution were withdrawn.

19. ADMINISTRATION:

CONSENT AGENDA:

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA TO AUTHORIZE THE CITY MANAGER TO ARRANGE FOR THE CITY TO PARTICIPATE IN THE MIAMI-DADE COUNTY COMMUNITY DEVELOPMENT BLOCK GRANT (CDBG) PROGRAM; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Vice Mayor Johnson to pass the above resolution.

Vice Mayor Johnson stated her support on the above item is with the understanding that it would come back to the Commission once it is awarded.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Mayor Taylor	Yes

A. CITY MANAGER'S REPORT:

Manager Finnie reported that prior to the next commission meeting he would deliver to the Commission staff's analysis and recommendation on how the city utilizes the proceeds from the Capital Bond program which may have an impact on the Sherbondy

Park project. He would provide a detailed memorandum to the Commission on the status of the Sherbondy Park project year to date and what actions the city must take to move forward. This item will also address lift station 11A in their strategy to move pool contractors to move the project along as efficiently as possible.

He proudly announced that the Information Technology Department completion of the Opa-locka Police Department's CAD system. He thanked the IT Department because he was gone for 18 months and when he came back the one department that had done everything they were suppose to do according to the implementation timeline was the IT Department.

He went on to say that the banking RFP would go out on Thursday, July 14, 2011.

Lastly, he informed the Commission that he would be coming at the next commission meeting with a ratification of his decision to sign a tree planting contract, which he had to do or the city would have lost the money by the end of the month.

Vice Mayor Johnson thanked the City Manager for the repairs on NW 27th Avenue near Church's Chicken and Wells Fargo Bank.

She continued by expressing her concerns and disappointment with the way the renewal of the banking contract was handled. She thanked those of her colleagues who attended the Special Commission Meeting on July 6, 2011 because she was concerned to find out that reserve monies was used to sponsor Sherbondy Village and no one should move any money without the approval of the Commission. In moving forward she suggested that the City Manager monitor this matter. She said she would not be supporting the $18,000.00 because what she had seen is pre-selection; but if the city has three bids then she would like to see them. This is no different than staff telling her about two meetings ago that the Urban Forestry Grant had 60 trees and it had to go in a certain area which she knew wasn't true and that information was recently verified. Although the previous City Manager was good, he didn't know a lot of things that was going on with staff and a lot of it involves money.

She further said that she wasn't aware there was a shortage in Code Enforcement vehicles because she observed the Code Enforcement Supervisor and a Code Enforcement Officer riding around in one vehicle. Additionally, she'd seen employees picking up people and bringing them to work and she doesn't want her tax dollars utilized as transportation for individuals to and from work. It is the employee's responsibility to get to work and not the city and she would like the City Manager to look into this.

Vice Mayor Johnson expressed the importance of getting all the clearances when hiring individuals to work for the city (i.e. background check, etc.). The City Commission and the appointed officials have a judicial responsibility and she is concerned about the abuse of power. She said she is concerned with the same individuals in the same positions which give the appearance as if the Commission is doing the hiring. Although she has done a very good job to stay out of the day to day operations of the city, she is concerned

with some of the decisions made so far. Being appreciative of the City Manager's diligence to balance the budget, she said she is concerned with some of the responses provided.

She stated to the City Manager that the city cannot move to the next level if everyone is not going to be transparent or truthful about the condition of the city.

Commissioner Holmes recalled the contract with Johnson Controls which cost the city a lot of money for work completed on the water meters so that they would work accurately. He asked for an explanation as to why those meters were not working properly?

Manager Finnie said he would have to get back with Commissioner Holmes on those details. During his first tenure with the city, he said he was frustrated because the reality of it is that the old meters replaced gave more accurate readings then the new ones in place and instead of buying the entire meter package, the city bought the meters in two components. The problem is that the wire connecting the meter can easily be cut and accessed to manipulate by outsiders. The city purchased a new piece of technology that has not as of yet worked efficiently. Because he has been away for a while, he needs to get more engaged to figure out what the results of the testing and what the city has to do to make it more efficient. The city must improve how that technology is used or else he would have to come back to the Commission with some other recommendation.

Commissioner Holmes directed the City Manager to provide the Commission with a detailed report as to why those meters are not working properly and why the city paid Johnson Controls if the meters are not working.

He asked, whose idea was it to construct the pump station near Segal Park?

Manager Finnie stated that there is construction going on and that's pump station number 2. He asked staff if there was a community process in terms of informing the community of what they were doing having a sense of the design of the pump station.

Fritz Armand, Public Works Director for the City of Opa-locka came forward and stated that only flyers were distributed. The new structure is to house the back up pump which is a requirement by DERM.

In building that structure, Manager Finnie asked, can it be beautified to not make it look like a lift station?

Mr. Armand said that the finished structure would be within the Opa-locka color scheme.

From the looks of it now, Commissioner Holmes said the structure is going to look terrible if the city doesn't do anything about it because the location of it is taking away from the beauty of Segal Park.

He continued to ask for an update on the road construction on Service Road.

Mr. Armand explained that the road could not be repaired until the new line has been tested. This project should be completed within a month.

Of concern to Commissioner Holmes was that the rain was causing the road to fall apart.

Mr. Armand agreed to speak to the contractor so that they can take temporary measures to avoid those issues until the completion of the work.

Commissioner Holmes requested that the City Manager look at placing benches on the parks for the youth participating in the city's recreational programs.

Manager Finnie said he would look at the budget.

Commissioner Holmes asked, will the new Sherbondy Park facility be hurricane proof?

Manager Finnie replied, yes.

Commissioner Holmes provided an explanation for not supporting the two budget amendment ordinances because of the amendments made.

Commissioner Miller questioned the City Manager about a new high school on NW 135th Street and Alexandria Drive which was formerly the Life Skills Center.

Esin Daniel Abia, Director of Building & Licensing came forward and explained that an individual obtained a license for a charter school from the previous Life Skills location; therefore, that sign is illegal and the owner has since received a citation for it. The owner has submitted plans for interior renovations which are still in the review process by the city. The sign should read "North Park Charter School" not "North Park High School" although the school has the ability to give High School Diplomas.

Mayor Taylor interjected and stated that the sign could read "North Park High School, a Charter School".

Mr. Abia informed the Commission that the owner had not obtained the required permit for the sign and subsequently received a citation.

Commissioner Tydus asked for the status on the Cuyahoga property regarding contamination which is a critical part in the redevelopment of that area. The Commission received a report several months ago, but she has not heard anything since then.

Manager Finnie said that a brief meeting was recently held and they have identified the property owner. The owner would like to work with the CRA to come up with a redevelopment scenario for the property.

Commissioner Tydus informed the City Manager that the last report they received indicated that same information.

Manager Finnie mentioned that Cuyahoga is on the radar scheme and there was a CRA brainstorming meeting and one of the things they came up with as a potential activity for the CRA is for it to work on environmentally challenged properties, redevelop those properties and put them back on the tax roll. Also a part of the discussion was ways through the federal government and the county to get proceeds to make those things happen.

Attorney Geller added that he received a memorandum on this matter as well identifying an assistant county attorney who was involved on the county side who happens to be a gentleman he knows. He will see what the county can and will do to assist the city.

Commissioner Tydus informed the City Manager that she noticed a tremendous amount of businesses not in compliance with the paint code ordinance. She requested that the city to place emphasis on the enforcement of that ordinance especially in the business community.

Mayor Taylor stated that she didn't want the city to have the appearance of anti-education as far as that virtual school that's coming up. The school is simulating what Life Skills did and it is for students who cannot fit in a formal classroom setting so they go four hours per day and computerize their work in order to receive their high school diploma. She inquired as to why a citation was issued for the sign.

Mr. Abia indicated that a permit was required for a sign and a permit was not obtained for the sign regardless of what the sign reads.

Mayor Taylor suggested that the city send out a notice in the utility bill with information on the Code Enforcement amnesty program that was recently extended by legislation to December 31, 2011. However, if she has to sponsor a resolution for a utility amnesty program then she would do so.

Manager Finnie asked for the opportunity to discuss the amnesty issue with Mayor Taylor.

As it relates to the hole on Service Road, Mayor Taylor said she would like to see flashing lights on the barricades for public safety.

B. ACCOUNTS PAYABLE:

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and said that included in the package under tabs 4 and 5 are the bank account information as of May 31, 2011, information on the reserve accounts, cash requirement and check register for June 2011. The city is maintaining the $565,000.00 reserve as budgeted.

Vice Mayor Johnson requested that the City Manager provide the Commission with the actual amount of money in the reserve fund. Although Dr. Orji reported at a previous meeting that the interest on the reserve was minimal, the report reflects an amount of $60,000.00 in interest and she would like to know what interest is being referred to.

She continued by requesting that the City Manager do research dating back to the 1980's when the Commission authorized for the bills to be paid. She suggested that the City Manager bring the information back to the Commission. Although she knows what the charter says that in order to rectify anything, it has to be an emergency and anything staff is aware of prior to the commission meeting is not an emergency. She was under the opinion that the city was taking advantage and she needs to bring closure to it.

She further stated that U.S. Bank was the institution utilized for the 1994 bonds and once the bond is paid then that account should be closed.

Manager Finnie replied, yes.

Once the account with US Bank is closed, Vice Mayor Johnson said that the city should have a bank as a result of the RFP that's out and the other bank is BB&T. She asked, are those the only two banks?

Dr. Orji explained that the city has three banks on record; US Bank, Bank Atlantic and BB&T.

Manager Finnie said that the question is, once the city pays off US Bank and once the new bank is selected, they would have two banking relationships. One with the bonds (BB&T) and the new bank they select. He asked, is that correct?

Dr. Orji replied, that is correct.

Vice Mayor Johnson said she would be fine if the city takes care of that and brings back the information she requested.

Mayor Taylor asked that the City Manager provide the entire Commission with a copy of the information requested by Vice Mayor Johnson.

Note: This portion of the minutes is transcribed in verbatim form.

Vice Mayor Johnson: *"Everybody gets a copy, please. But while we're saying that, there are some things, and I know that I don't get a copy of everything, I know that. I'm cool with it, but when we're from the dais and asking for information, please make sure that everybody. There are some things that I'm going to ask for public record that I need for public record and I feel like if my colleague need it for public record, they need to make that request. But when I'm asking from the dais, please let the record reveal verbatim that please provide my colleagues all with copies. Thank you!"*

Note: This concludes the verbatim portion of these minutes.

20. OFFICIAL BOARD REPORTS:

21. CITY ATTORNEY'S REPORT:

Attorney Geller informed the Commission that they already have his written report. He added that pursuant to conversation with Vice Mayor Johnson, he spoke to the City Manager about moving forward on the 501C3, the city's education institution. The city does need to select both the Board of Directors and Officers. His presumption, unless someone says different, is that the Commission would act as the Board of Directors and he was going to suggest that they, by motion, pick the officers, but under the circumstances it may be better for him to prepare a resolution to consider at the next meeting.

Vice Mayor Johnson directed the City Attorney to bring back a resolution for an audit on the Water & Sewer because she is hearing too many people being forgiven for their Water & Sewer. In 2004 and 2006 there were many businesses that have never paid water bills and the total amount of debt owed to the city then was millions of dollars. She requested that the City Attorney allow her to review the resolution prior to placing it on the agenda.

Attorney Geller said that the resolution is to authorize the City Manager to issue an RFP to secure audit services for the Water & Sewer.

Vice Mayor Johnson requested to be provided with the cost associated with her request prior to. Perhaps the city can get the county to assist since they have provided additional resources.

Attorney Geller indicated that he would get with Vice Mayor Johnson to further discuss her request.

Vice Mayor Johnson said that perhaps the city can conduct a feasibility study first and then consider an RFP in the upcoming budget. In reviewing the numbers in the Water & Sewer account, the numbers are not adding up.

She continued by saying that she met with the City Manager and City Attorney on the annexation matter and it is important to have a workshop to further discuss this issue. She directed the City Clerk to poll the Commission for a workshop on the annexation and perhaps it can also be combined with the workshop Commissioner Tydus requested.

22. CITY CLERK'S REPORT:

Clerk Irby reported that she is continuing to work on the document imaging. She is also familiarizing herself with HB 1355 which includes new election laws. She informed the Commission that she would be attending training on the new election laws in August and

when she gets back, hopefully she can have a series of Town Hall Meetings up until next year's election.

Vice Mayor Johnson said that it was crucial for the City Clerk, City Attorney and City Manager to formulate and work on bringing the Opa-locka Charter / Code up to date. The Charter Review Board has made recommendations in the past. She suggested that the City Attorney fast track this item so that the Commission can hold a workshop to move forth it.

She continued by saying that the City Clerk is working on the Back to School event which she was planning on having on August 13, 2011, but she just saw the signs that Commissioner Tydus is hosting the Gospel Event on August 13, 2011. She is now looking at August 20, 2011 for the Back to School event. Although she is soliciting donations for this event, she would like to provide a report to the Commission reflecting the amount of contributions and where the money came from with a receipt going back.

Commissioner Tydus asked, what is the process for records imaging and how far back is the City Clerk going?

Clerk Irby explained that the documents are scanned through a scanner and stored in a records management program called Laserfiche. Once the records are stored, this program allows for search of documents by keyword(s). The records are being stored from most recent going back to when the city was first incorporated.

Vice Mayor Johnson inquired about the stored files in back of the Commission Chambers at City Hall because she had previously seen people taking files out. She asked, are those files to be stored into the records management system?

Clerk Irby replied, yes. She mentioned that the files no longer needed were destroyed and those files to be stored into the document imaging process are still in back of the Commission Chambers. She is waiting for the Public Works Department to transport the files to her office for document imaging.

Vice Mayor Johnson asked, are the files going to be in a secured area in the City Clerk's Office?

Clerk Irby said the files would be stored in the locked file room in the City Clerk's Office.

Mayor Taylor asked, where are the books going?

Once the documents are stored into the document imaging system, Clerk Irby said that she will start the process of having a records storage company to come in to store all city documents.

Mayor Taylor expressed the importance of having the ledgers from 1920's stored in a professional air conditioned site. She suggested that the City Clerk network with the City Attorney so that he could pull up his own documents. She thanked Nelson Rodriguez of the IT Department for making this possible in the City Clerk's Office.

She continued by asking the City Clerk if she had any documentation from Miami-Dade County Elections as to how Opa-locka voted in the last election.

Clerk Irby said she would pull that information from the website and provide it to the Commission.

23. MAYOR/COMMISSION REPORT:

Commissioner Holmes reported that he met with representatives from Dade Memorial Cemetery and they have programs they would like to discuss with the Commission to offer to the residents of Opa-locka.

Vice Mayor Johnson reported that she previously was contacted by the US Soccer Team to include the youth from the community in soccer during their next visit. She provided an update on the job creation training and announced that the graduation would be held on July 15, 2011. She thanked staff on the tree planting although the city didn't get the amount trees they anticipated due to a miscommunication. The tree planting event would be a great opportunity for individuals to come out and dedicate trees in memory of their love ones. This event would be held on July 16, 2011 at the Community Garden near Nathan B. Young Elementary.

She went on to say that she spoke to the branch manager of Wells Fargo Bank to make sure they're community friendly to the local businesses and employees. She said she would continue that dialogue with the representative of the bank.

She reported that she will continue to work on the Back to School Drive scheduled for August 20, 2011. She recalled a resolution that was sponsored by former Mayor Joseph L. Kelley for volunteerism and she needs as many employees as possible to volunteer because both schools in Opa-locka will need enhancement and she would be working on that. Additionally, whoever becomes the chair of the education committee must be able to work with the school board and bring some deliverables as it relates to education.

Commissioner Holmes reminded everyone of the Saggy Pants Ordinance in place and mentioned about the Governor putting in place that no child can go to school in the State of Florida with their pants sagging. He directed the City Manager to make sure all city vehicles display the "no saggy pants" bumper stickers.

Commissioner Tydus piggybacked on Vice Mayor Johnson's community friendly comments and briefly mentioned an act of community friendliness displayed by a neighbor. She encouraged everyone to be neighbor/community friendly.

She continued by reporting that she was one of the readers for the Summer Freedom School held at Teen Upward Bound, a discipline program which is an asset to the community. She highly recommended the Freedom Summer School in the years ahead.

Commissioner Holmes announced the passing of long time resident Barbara LeCounte.

Mayor Taylor said that out of the City Clerk's Office she has asked Mrs. Darden to call the funeral homes on a weekly basis so they don't miss anyone in the City of Opa-locka.

She went on to say that the city was getting negative press and the city have not had any contrasting points of view, but that would be coming soon to ensure they get all of the good news gets out, not only to the press, but to the general public. She mentioned sponsoring a series of workshops that would include the residents in the growth process of the city.

She informed Vice Mayor Johnson that the annexation research had already started from South to NW 103rd to East to NW 17th Avenue and West to NW 37th Avenue.

She said she was also in touch with Congresswoman Wilson to see if the city could get better movement on CSX. Also, she is looking to have an Urgent Care in the City of Opa-locka and she would put that in the form of resolution. She asked that the City Manager look into buildings in the city that are available for lease or rent in the upcoming year.

Mayor Taylor suggested that the Commission is careful as to how they act on the dais because people are watching them and they are mentors for the youth. She encouraged the Commission to stop the bickering amongst each other and be more cognizant of how they act. The City of Opa-locka will be a five star city, but it will start with the Commission.

She expressed her concerns relating to the upcoming Gospel Event from the Parks & Recreation. Although she didn't have a problem with the Gospel Fest, but the city is on a tight short leash as far as money is concerned. The Gospel Fest may have not cost anything, but the appearance of having these big signs out there makes the residents feel as if the Commission doesn't care and it is business as usual. However, it is not business as usual because everybody has had a copy of this budget amendment and the city is taking away and cutting back, but God has fixed it so that they did not have to lay off anybody in this new budget year. She suggested that the city do not take that liberty too far and directed the City Manager to get a handle on his staff with these events. She asked the City Manager and her colleagues to hold off on special events until at least January 2012.

She further stated that she didn't care for the signs because it looks as if they are competing with each other. Her concern with the signs was that one has Commissioner Tydus name to the top, the other has Vice Mayor Johnson's name at the top and right under it reads the Mayor & Commission. The name should be the City of Opa-locka and maybe it will be hosted by one of them; but every event should be given or sponsored by

the City of Opa-locka. Even if those signs don't cost anything, and they do because if the signs don't cost, the labor does. She suggested that the city utilize the water bill to get information out to the general public, flyers, etc. Anything but those big signs which look expensive and she knows they are not given to the city free. She reminded the city that it is not so much what they are doing, but the appearance of it. From this point on, the Commission should push the city and not an individuals; everything will be a city initiated event sponsored by the city, hosted by somebody. The city has a moral obligation and fiduciary responsibility to the residents and it doesn't look well.

Mayor Taylor asked that the City Attorney and City Clerk contribute to the budget deficit.

Because Mayor Taylor brought up the signs, Vice Mayor Johnson said she noticed a sign on President Barack Obama Avenue with one name in red and the other are not. The Commission must be consistent and when talking about curtailing events, that should be a vote from the Commission. Because the Back to School Drive was already in progress, she said she would move forth with it.

Mayor Taylor clarified that she wasn't specifically talking about the Back to School Drive because that is necessary and not considered a special event. She noted that the sign on Veteran's Way is matching the county signs because everything that's done in the City of Opa-locka does not have an Opa-locka identity. The city now has its own signs with each member of the Commission names on it. The only thing is that they left the project blank so that the signs can be reused.

Vice Mayor Johnson noted that the sign has one name in red and everybody else is in black and in speaking about the signs, there must be consistency amongst all.

Mayor Taylor asked the Commission, although she could have put it in a resolution, but some things she thinks they can just agree on as professional people; however, if Vice Mayor Johnson needs a motion then she can do a motion. All she is asking is that everyone holds off on special events for a little while.

Commissioner Holmes and Vice Mayor Johnson suggested that Mayor Taylor bring back a resolution.

Mayor Taylor agreed although she didn't think this needed a resolution.

If this included pulling back on the Gospel Explosion, Commissioner Tydus said that advertisements had already gone out, over 200 churches have been notified and she is not going to pull back.

Mayor Taylor realized that those events are already in motion and she is talking about from this point forward, but she will bring back a resolution.

24. OFFICIAL BOARD APPOINTMENTS:

It was moved by Vice Mayor Johnson, seconded by Commissioner Miller to appoint Joseph L. Kelley to the Planning Council.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Miller	Yes
Commissioner Holmes	Yes
Vice Mayor Johnson	Yes
Commissioner Tydus	Yes
Mayor Taylor	Yes

25. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Vice Mayor Johnson, seconded by Commissioner Miller to adjourn the meeting at 9:42 p.m.

MAYOR

ATTEST:

CITY CLERK